MARIE THERESE KADURIRA
versus
NATHAN AMOS KADURIRA

HIGH COURT OF ZIMBABWE
PHILLIPS J
HARARE, 23 October 2025, 18 August 2026

T Zenda, for the plaintiff
M T Rujuwa, for the defendant

Summons Commencing Action

PHILLIPS J

Introduction

The Plaintiff issued summons for divorce and for the sharing of property which was acquired during the subsistence of the marriage. The parties met in Senegal where the plaintiff is originally from, the defendant had travelled there in June or July of 1993 whilst he was working for the government as a diplomat accountant. The parties have agreed on the sharing of their movable properties but the issues remaining surround the immovable properties, in particular the matrimonial home that the plaintiff currently resides in.

Relief sought

The Plaintiff's summons and declaration pray for the following:

"A decree of divorce as pleaded in paragraph 6 of the summons.
Division of matrimonial property as spelt out in paragraph 7 of the declaration.
Custody of the minor child.
Maintenance of the two children, Nathan and Savanna as outlined in paragraph 9 of the declaration.
Costs of suit."

Issues for determination

The minutes to the round table meeting that was held on 14 July 2025 agree on the issue for trial as follows:

"1.What is the most just and equitable way of sharing immovable properties and the remaining movables mainly household goods and effects."

At trial, both the plaintiff and the defendant gave evidence. It is clear from the evidence given that the marriage has irretrievably broken down such that it is appropriate for an order for divorce to be granted. The parties had further submitted that their main issues were surrounding the immovable properties which consist of House No. 6 Biddulph Road, Cranborne (hereinafter referred to as the Cranborne property) which serves as the principal subject of dispute; a residential property in Chitungwiza (hereinafter referred to as the Chitungwiza property) and there are also a farm in Nyazura, Plot number 11 Friswaag, Stands 1459 and 1450 Chiduku, Nyazura and Stand 50768 Chandukuro, Rusape (hereinafter referred to as the Rusape Complex).

The Plaintiff's Evidence

The Plaintiff led evidence to the effect that she and the defendant got married on 9 October 1993 in Senegal in terms of Senegalese laws which specifically had the option for "a joint estate system". Her evidence was that this marriage regime was in community of property. She told the court that upon moving to Zimbabwe with her husband, they then agreed to formalise the marriage in Zimbabwe on 6 February 2001. The marriage certificate that was accepted by the court with no objections from the defendant was in terms of the Marriage Act [*Chapter 5:11*] and was endorsed "married under Senegalese Law". The Plaintiff gave evidence that the Cranborne and Chitungwiza properties were acquired by the defendant before their marriage, however, the Rusape property was acquired together and

> "constructed and/or developed brick upon brick together".

The plaintiff is claiming the Cranborne house only which house, she told the court, she was left living in, with the children by the defendant, and which house she largely renovated alone. Her testimony is that the value of this Cranborne property "is more or less equal to the combined values of the Rusape Complex and the Chitungwiza property. The plaintiff's evidence is largely hinged on the fact that the she was married in community of property to the defendant, for a timespan in excess of 30 years and is therefore entitled to at least 50% of the value of their matrimonial estate.

The Defendant's Evidence

The Defendant's evidence is that he started staying at the Cranborne property in 1982 but got funds to purchase it in 1985. He then met the plaintiff in 1993 in Senegal where he had gone with the government as a diplomat. The defendant testified that he was married prior to his marriage to the plaintiff but that first marriage did not work out. His told the

court that he divorced his first wife in September 1993 and married the plaintiff in October 1993 in Senegal. They subsequently returned to Zimbabwe and registered their marriage under the Marriage Act [*Chapter 5:11*] so his argument is that the Zimbabwean marriage certificate governs their marriage regime, making their marriage out of community of property. He maintained that both the Cranborne and Chitungwiza properties were purchased prior to the parties' marriage and are therefore not subject to joint ownership. His position is that the plaintiff never made any "*demonstrable investment*" into the Cranborne property and therefore if not entitled to it and that he had gifted the Chitungwiza property to one of his children with the first wife. He disputed what the plaintiff was stating were improvements on the Cranborne property, and asserted that items such as the Durawall were always there. He also told the court that on the two communal stands in Nyazura, he cannot take what is not there, he testified that he got the stands in 2014 but they were repossessed by the council who reallocated them to Total. He told the court that he had purchased the Rusape complex himself in 1993 whilst he was based in Johannesburg and had bought all the construction materials beforehand although he completed the construction of the complex when he was with the plaintiff. He told the court that he only left the Cranborne house in 2023 because the plaintiff was violent towards him. His position is that the plaintiff can benefit from 10% of the Cranborne property since that property was his from before the current marriage, however, she may have 20% of the Rusape complex and 50% of the value of the farmhouse on the plot (which the defendant places the farmhouse value at US$3,000. He also repeated to the court that the Nyazura stands no longer exist in the matrimonial estate.

That Law

In considering the assets that are available for distribution at the dissolution of a marriage the court is guided by the provisions **Section 7 of the Matrimonial Causes Act** [*Chapter 5:13*] which guides the court as follows:

> "(1) Subject to this section, in granting a decree of divorce, judicial separation or nullity of marriage, or at any time thereafter, an appropriate court may make an order with regard to—
> (a) the division, apportionment or distribution of the assets of the spouses, including an order that any asset be transferred from one spouse to the other;
> (b) the payment of maintenance, whether by way of a lump sum or by way of periodical payments, in favour of one or other of the spouses or of any child of the marriage.
> (2) An order made in terms of subsection (1) may contain such consequential and supplementary provisions as the appropriate court thinks necessary or expedient for the purpose of giving effect to the order or for the purpose of securing that the order operates fairly as between the spouses and may in particular, but without prejudice to the generality of this subsection—

(a) order any person who holds any property which forms part of the property of one or other of the spouses to make such payment or transfer of such property as may be specified in the order;
(b) confer on any trustees of any property which is the subject of the order such powers as appear to the appropriate court to be necessary or expedient.
(3) The power of an appropriate court to make an order in terms of paragraph (a) of subsection (1) shall not extend to any assets which are proved, to the satisfaction of the court, to have been acquired by a spouse, whether before or during the marriage—
(a) by way of an inheritance; or
(b) in terms of any custom and which, in accordance with such custom, are intended to be held by the spouse personally; or
(c) in any manner and which have particular sentimental value to the spouse concerned.
(4) In making an order in terms of subsection (1) an appropriate court shall have regard to all the circumstances of the case, including the following—
(a) the income-earning capacity, assets and other financial resources which each spouse and child has or is likely to have in the foreseeable future;
(b) the financial needs, obligations and responsibilities which each spouse and child has or is likely to have in the foreseeable future;
(c) the standard of living of the family, including the manner in which any child was being educated or trained or expected to be educated or trained;
(d) the age and physical and mental condition of each spouse and child;
(e) the direct or indirect contribution made by each spouse to the family, including contributions made by looking after the home and caring for the family and any other domestic duties;
(f) the value to either of the spouses or to any child of any benefit, including a pension or gratuity, which such spouse or child will lose as a result of the dissolution of the marriage;
(g) the duration of the marriage; and in so doing the court shall endeavour as far as is reasonable and practicable and, having regard to their conduct, is just to do so, to place the spouses and children in the position they would have been in had a normal marriage relationship continued between the spouses."

In *Isaac Sithole* v *Lucia Sithole* HH 6674/14, CHITAKUNYE J (as he was then), discussed fully what assets are distributed at the dissolution of a marriage stating as follows:

> "The assets to be considered for division and distribution are assets of the spouses. The term 'assets of the spouses' connotes assets that maybe in either spouse's name or jointly owned. Gonye v Gonye 2009 (1) ZLR 232 (S). Such assets include all assets purchased whether before or during the marriage and property acquired after separation unless such property is specifically excluded in terms of section 7(3) of the said Act. *Musonza* v *Musonza* HH35/10 and *Ncube* v *Ncube* 1993 (1) ZLR 39 (S)."

The following year, MWAYERA J (as she was then) in *Duncan* v *Duncan (*HC 3068 of 2015; HH 232 of 2017*) [*2017] ZWHHC 232 (30 march 2017) discussed spouses' assets and equitable distribution and quoted GILLESPIE J (as he then was) on **Section 7 of the Matrimonial Causes Act** in *Shenje* v *Shenje 2001 (2) ZLR 160 (H)* wherein he said as follows:

> "… In deciding what is reasonable, practical and just in any division, the court is enjoined to have regard to all the circumstances at the case. A number of more important and more usual circumstances are listed in the subsection. This list is not complete. It is not possible to give a complete list of all factors. The decision to a property division order is an exercise of judicial discretion, based on relevant factors aimed at achieving a reasonable, practical and just division which secures for each party the advantage they can fairly expect from having been married to one another, and avoids the disadvantages to the extent they are not inevitable of becoming divorced…"

In the case of *Isaac Sithole* v *Lucia Sithole* HH 6674/14, (supra) the Honourable Judge further commented as follows:

> "It is trite law that a wife cannot bar her husband from selling assets registered in his name more so when no divorce action requiring the distribution of those assets is instituted."

In *Takafuma* v *Takafuma* 1994 (2) ZLR 103 (S) 107 C, the approach is not one of strict equality or mathematical division, but one that considers the direct and indirect contributions of each party, as well as the welfare of any minor children. MCNALLY JA made the following pronouncement;

> "The approach which I have outlined is consistent with an earlier decision of this court. In Ncube v Ncube (1993 (1) ZLR 39). KORSAH JA dealt with a similar situation at (pp 45-48) of the judgment. He adopted the approach of starting from a position of 50-50 ownership and only moving away from that position if the justice and equity of the case required it."

It was clearly set out by CHITAKUNYE J (as he was then) in *Kwedza* v *Kwedza* HH 34-12 where he remarked;

> "It is only fair that whatever apportionment or distribution is done, it does not burden the defendant so much that he is left without accommodation."

In *Mhora* v *Mhora* SC 89-20, the Supreme Court also upheld the award, in a divorce matter, by the High Court to a wife, of a 50% share of an immovable property which was registered in her husband's name, The husband had submitted that he acquired the matrimonial property without any direct contribution from her, whilst the wife had argued that their roles were complementary. The court then states as follows with regards to indirect contributions:

> "Indirect contributions encompass much more than the performance of domestic duties. It encompasses all aspects of a spouse's role in the life of the other spouse and their children in the day to day running of a family"

In the case of *Kwedza* v *Kwedza* HH 34-12, the court stated that;

> "MAKARAU JP (as she then was) remarked in *Dzova* v *Dzova* 2008 (1) ZLR 294(H)… the Act introduces a duty on the court divorcing the parties to maintain as far as is reasonable and practicable, the lifestyle that the spouses enjoyed during the subsistence of the marriage but "upholding one obviously frustrates the other". The reality is that once the divorce is granted, the position of the parties in the majority of the cases changes considerably and irretrievably….it may be possible for a court to achieve a more or less similar lifestyle of living for both spouses after divorce. In many cases however this is not achievable… what the law requires and the court endeavours to do in such a situation is to try and do justice, taking into account the personal and family circumstances of the spouses and the resources available at the time of the divorce. Generally speaking, restoring the status quo ante in the majority of the cases may not be feasible."

Application of Law to the Facts

One of the issues the parties presented at trial was related to the marriage regime of the parties. Whilst the plaintiff asserted that it ought to be under the Senagalese law that recognises in community of property, the defendant asserted that there is Zimbabwean marriage certificate which then brings that marriage regime within the realm of the Zimbabwean position which is out of community of property. If the parties had already been married in Senegal, could they legally get married again in Zimbabwe? No, they were already married, in fact the Zimbabwean marriage certificate already recognised that fact and it was specifically stated that the parties were already married according to Senagalese laws. Save for stating this, this court, however, will not delve much more into this because the property regime of the parties is not the basis of its decision.

It is not disputed that the parties were in fact married, and married for a period in excess of 30 years. All their children are now majors and so the issues of custody, access and maintenance are no longer for this court to decide on. The defendant even told the court that he bought cars for those children to drive to school and paid fees for one who was in Cape Town because he had an advantage of being a war veteran. The plaintiff also paid for the children/s school fees through an 80% benefit that her employer at the time offered her. Both parties have contributed to the children. This court does not doubt that the defendant loves his children, he has even gifted one of his eight children with the Chitungwiza house opting to reside at the Rusape Complex where he is also running some business. This choice on the part of the defendant is of significance to the court. If a child can deserve a house that she has been living in, what more a spouse that you shared more than 30 years with. One cannot be concerned more about not wanting to disturb a child's standard of living but prefer to disturb a former wife of 30 year's standard of living in a certain property which you yourself have not lived in for over three years.

In coming up with an order, the court is obligated to take various factors into consideration which include amongst, other things the parties' financial positions, income earning capacities (current and future) and their standard of living. The defendant even tells this court that his wife is foreigner and that she is only staying at the Cranborne property because the plaintiff is his spouse although he says that she made no contribution to it. Although the defendant is now a pensioner, his predominant place of abode has been the Rusape Complex. The plaintiff obviously wants to remain in Zimbabwe because this is where her life is now. In terms of *Mhora* (supra), financial contribution is not the sole aspect the court will consider in making an award. The indirect contribution of a party is invaluable as pointed out in various pieces of caselaw, further to that the amount of years in the marriage is also a significant factor. The court also considers that the plaintiff was doing her part in supporting the defendant during those 30 years to enable him to earn and receive the benefits he received as a war veteran.

The court's discretion is very wide in coming up with an order for distribution. The court may even order that a property that is one party's name be ordered to be another party's property. That is exactly what this court sees fit to do. The plaintiff is already the de facto owner of the Cranborne property, she lives there with some of the children of the marriage, she has invested in the property and she has renovated it as if it was her own home. The court finds it hard to believe that she has not spent any of her fair earnings on the property that she lives at as the defendant would like this court to believe. This court is also placing a fair amount of its discretion based on the standard of living that the plaintiff is accustomed to, further to this there would be no justice in rendering her homeless whilst the defendant obviously has options – he has a place to live in Rusape where there are also rooms that he lets out for profit, along with a night club and take away.

On the issue of the two Stands that the defendant has submitted were repossessed and reallocated to Total. Surely evidence to that effect from the council would have worked in his favour. In the absence of such evidence, it looks as though the defendant's mission is solely to disenfranchise the plaintiff and make himself look as though there are no other properties in the matrimonial estate. The plaintiff has told this court that she does not have any further information of these stands either so this court will not spend time on this nor will this court distribute them.

The plaintiff also needs a place to live. She is approaching a retirement age and the chances of her being able to earn a living, as a foreigner of her age in Zimbabwe are seriously

diminished. Had the marriage relationship continued, it is highly likely that the plaintiff would have remained living at the Cranborne property, so let her remain there, but as an owner without the interference of the defendant. Contrary to the defendant's assertions that **Section 7(3) of the Matrimonial Causes Act** excludes properties purchased before the marriage from being included for distribution, such property is indeed included unless it falls with the three categories specifically stated therein. Those excluded categories were not pleaded at all by the defendant so the plaintiff is entitled to this property as she prays for.

Disposition

1. A decree of divorce be granted.
2. An order that House No. 6 Biddulph Road, Cranborne be awarded to the Plaintiff as her sole and exclusive property.
3. An order that the defendant sign transfer documents in favour of the plaintiff within six (6) months of the granting of this order failing which the Sheriff of the High Court of Zimbabwe is hereby authorised to sign the documents in his place.
4. An order that the defendant be awarded the following immovable property as his sole and exclusive property:

4.1 One house in Chitungwiza

4.2 All interest and value invested in one farm in Nyazura – Plot Number 11 Friswaag, Nyazura

4.3 A shop in Rusape, namely stand 50768, Chandukuro, Lakeview.

5. An order for distribution of movable property in the following terms:-

5.1. That the movable property be shared by the parties as follows:

Plaintiff	Defendant
1 x Nissan Murano	1x 5000 litre tank
1 x Toyota Nadia	1x solar panel
All the property that she was given	1 x solar battery
By her sister which is located	Curtains
At Stand number 50768 Rusape	1x 55 inch Phillips Television
All the household property	1 x refrigerator
Located at Number 36	1 x 4 piece lounge suite
Biddulph Road, Cranborne, Harare	

1. The plaintiff shall pay the transfer costs involved in transferring House No. 6 Biddulph Road, Cranborne to herself.

2. Each party to bear its own costs.

PHILLIPS J:……..

Hungwe and Partners, Plaintiff's Legal Practitioner
Rujuwa Attorneys, Defendant's Legal Practitioner